

## 26STCV04457 26STCV04457

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### TENTATIVE RULING

HEARING DATE: September 28, 2026

CASE NUMBER: 26STCV04457

CASE NAME: Gonzalez, et al. v. Kashi M Corporation, et al.

MOVING PARTY: Specially Appearing Defendant, Kashi M Corporation[1]

OPPOSING PARTY: Plaintiffs, Rocio Gonzalez, et al.

PROCEEDING: Motion to quash service of summons and complaint

RULING SUMMARY: Specially Appearing Defendant's motion to quash service is denied.

### Background

On February 11, 2026, plaintiffs Rocio Gonzalez, Jonathan Silvestre, and Arcadio Rosas-Maciel ("Plaintiffs") filed a Complaint against Defendant Kashi M Corporation ("Defendant") for:

1. Breach of Warranty of Habitability
2. Breach of Covenant of Quiet Enjoyment
3. Negligence
4. Breach of Contract

Defendant moves to quash service of the summons and complaint due to the failure to complete service on an authorized agent for service.

## I. Legal Standard

A plaintiff has the initial burden to establish valid statutory service of a summons and complaint. (*Dill v. Berquist Const. Co., Inc.* (1994) 24 Cal.App.4th 1426, 1439-40; *Floveyor Internat. v. Sup. Ct.* (1997) 59 Cal.App.4th 789, 794.) "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing." (Code Civ. Proc., 415.20, subd. (b).)

Service in this context is allowed "upon a person upon a person whose 'relationship with the person to be served makes it more likely than not that they will deliver process to the named party.'" (*Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1393; see *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1202; *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 546 (fn.3).) "The return of a process server registered [under] Division 8 of the Business and Professions code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code, § 647.)

## II. Discussion

Defendant's Request for Judicial Notice is granted.

Proof of Service by substituted service was filed by Plaintiff on May 14, 2026, showing service on Kashi M Corporation, by "Agent: Lourdes Urrea Maldonado" at 5423 S. Central Ave., Los Angeles, by substituted service on John "Antonio" Doe – Co-Employee" on 4/20/2026. Service was indicated to be at a business address.

Attached to the Declaration submitted with the Opposition was copy of a Proof of Service of Summons filed 09/22/2026, on the same corporation, by the same agency, by substituted service on "Age: 50s, Race: Hispanic; Sex: Male," with eight, height and hair descriptions, on 9/2/2026. Service was indicated to be at a home address.

Defendant acknowledges the accuracy California Secretary of State Statement of Information. The identified officer and agent for service is Lourdes Maldonado. Eric Jimenez is also an identified director. (See Corp. Code, §§ 1502, 1505, 16310.)

According to Declarations of Due Diligence also submitted with the Opposition, in eight separate prior attempts from March 19, 2026, to April 9, registered process server Miguel Molina attempted service on a registered agent or officer. The business was either closed, the process server was unable to gain entry, or a person on the premises represented no one was on the premises matching the agent or officer names was employed at this location. On April 20, 2026, the process server executed substituted service with a "John 'Antonio' Doe" on the premises for registered agent, Lourdes Maldonado. Mail service was also completed.

Lourdes Maldanado submitted a declaration admitting the propriety of the address, but denying anyone named "Antonio" worked on the premises. Other than this simple denial of the existence of Antonio, nothing in the declaration or motion actually addresses the numerous prior attempts and the apparent regular closure of the location.

The dispute regarding “Antonio” as a proper recipient of substituted service comes down to credibility of Maldonado versus the process server and Plaintiffs’ counsel. [See Declaration of Ashley Soto.] Mere denial of Antonio without any further justification for the state of office operations suggests an effort to evade service of process. Registration of a corporate entity with the State of California indicates regular systematic operations in the state, rather than a shell operation intended to avoid legal responsibilities. Defendant cannot evade appearing in the action simply based on hiding and denial.

Antonio was apparently properly on the premises on April 20, 2026, and spoke with the process server. Whether Antonio was employed by Kashi M Corporation or not in no way establishes a lack of apparent authority of Antonio to greet invitees on the premises and leave notice to Kashi M Corporation representatives at its identified address. (See *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059-1060.)

Based on the foregoing, the Court denies the motion to quash service.

Conclusion

The motion to quash service of the summons and complaint is denied. Kashi M Corporation to file a responsive pleading within 10 days of this order.

Date: \_\_\_\_\_

William E. Weinberger

Judge, Los Angeles Superior Court

[1] The Court notes that Specially Appearing Defendant’s counsel failed to include his State Bar Number by his name above the case caption, as required. Counsel must assure that future filings by him include his State Bar Number or risk rejection of the pleadings.